

1 Accordingly, it is clear that Plaintiffs expressly challenge Barak's exercise of his official
 2 powers as the former Minister of Defense of Israel.⁶ On their face, acts of defendant foreign
 3 officials who are sued for exercising the powers of their office are treated as acts taken in an
 4 official capacity, and plaintiffs have provided no reason to question that determination.

5 Plaintiffs argue in their Opposition that "foreign officials are not entitled to immunity
 6 under the common law for violations of *jus cogens* norms,"⁷ relying primarily on the Fourth
 7 Circuit's decision in *Samantar*. Opp'n at 8–9. There, the Fourth Circuit held that "under
 8 international and domestic law, officials from other countries are not entitled to foreign official
 9 immunity for *jus cogens* violations, even if the acts were performed in the defendant's official
 10 capacity." *Samantar*, 699 F.3d at 777. Plaintiffs' reliance is misplaced. The per se rule of non-
 11 immunity adopted by the Fourth Circuit is not drawn from any determination made or principles
 12 articulated by the Executive Branch. In *Samantar*, the Solicitor General informed the Supreme
 13 Court that "[t]he Executive has not adopted any such categorical exception to immunity," and
 14 that the Fourth Circuit's judicially created rule "would substantially impair the Executive's
 15 authority and responsibility to make immunity determinations." Second SG Brief at 12; *see also*
 16 First SG Brief at 11. The Fourth Circuit's decision is thus inconsistent with the basic principle
 17 that Executive Branch immunity determinations establish "substantive law governing the
 18 exercise of the jurisdiction of the courts." *Hoffman*, 324 U.S. at 36.

19 Moreover, the Supreme Court in *Samantar* unanimously held that courts should continue
 20 to adhere to official immunity determinations formally submitted by the Executive Branch, just
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 24 ⁶ Indeed, Israel has confirmed that "all of the actions of Mr. Barak at issue in the lawsuit were
 25 performed exclusively in his official capacity as Israel's Minister of Defense." Diplomatic Note
 26 from Israel 1.

27 ⁷ A *jus cogens* norm "is a norm accepted and recognized by the international community of states
 28 as a whole as a norm from which no derogation is permitted and which can be modified only by
 a subsequent norm of general international law having the same character." *Siderman de Blake*,
 965 F.2d at 714 (quoting Vienna Convention on the Law of Treaties, art. 53, May 23, 1969, 1155
 U.N.T.S. 332, 8 I.L.M. 679).